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Case Number: 23TRCV04197 Hearing Date: August 27, 2026 Dept: P

Motion for Sanctions Pursuant to Code of Civil Procedure Section 128.5

Moving Party: Plaintiff Devon Osgood Cook, trustee of the Cook Family Trust dated October 25, 2023

Responding Party: Defendant Juston Cook

RULING

The court considered the moving papers, opposition, and reply. Plaintiff’s Motion for Sanctions is DENIED. Defendant Cook’s request for sanctions is DENIED. Defendant Cook’s request for an award of reasonable expenses and attorney’s fees is DENIED.

PROCEDURAL BACKGROUND

On December 15, 2023, Plaintiff Devon Osgood Cook, trustee of the Cook Family Trust dated October 25, 2023 (“Plaintiff”) filed a complaint against Defendant Juston Cook (“Defendant Cook”) alleging a single cause of action for partition by sale.

On May 1, 2024, Plaintiff filed a first amended complaint (“FAC”) alleging a single cause of action for partition by sale against Defendant Cook, AMRO Mortgage Group, Inc., Citimortgage, Inc., Mortgage Electronic Registration Systems, Inc., and All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in the Complaint Adverse to Plaintiff’s Title, or Any Cloud on Plaintiff’s Title Thereto and DOES 1 through 50, inclusive (collectively, “Defendants”).

On April 24, 2025, the court entered an interlocutory judgment providing that the property at issue shall be partitioned by sale and appointing Whit Prouty as referee (the “Referee”) with power to oversee the sale and distribution of the sale proceeds.

On February 10, 2026, Plaintiff filed a Motion to Confirm Sale of Property, which the court granted on February 24, 2026.

On July 23, 2026, Plaintiff filed the instant motion. On August 14, 2026, Defendant Cook filed an opposition. On August 20, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on May 26, 2017, Plaintiff, Defendant Cook, Jessica Cook, and Marlon Cook each obtained an undivided 25% interest in property located at 14623 Roxton Avenue, Gardena, California (the Property") as joint tenants. (FAC, ¶¶ 9-10.) Plaintiff alleges that on July 25, 2017, Jessica Cook and Marlon Cook transferred their interests in the Property to Plaintiff and Defendant Cook through a quit claim deed, leaving each with an undivided 50% interest in the Property, after which Plaintiff transferred his interest to himself as trustee of the Cook Family Trust. (FAC, ¶¶ 11-12.) Plaintiff alleges that Defendant Cook has subsequently made physical threats against Plaintiff such that Plaintiff wishes to sell the Property in order to leave the unsafe environment. (FAC, ¶¶ 17-18.) Plaintiff alleges that he has attempted to negotiate with Defendant Cook with no success, leading Plaintiff to seek partition by sale as a remedy. (FAC, ¶¶ 19-20.)

LEGAL STANDARD

Under Code of Civil Procedure Section 128.5, the court may order a party or counsel, or both, “to pay the reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc. Section 128.5(a).) The court must find both objective unreasonableness and subjective bad faith. (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167.) Frivolous means “totally and completely without merit or for the sole purpose of harassing an opposing party.” (Code Civ. Proc. Section 128.5(b)(2).) Bad faith means the actions were taken “without subjective good faith or honest belief in the propriety or reasonableness of such actions….” (In re Marriage of Sahafzadeh-Taeb & Taeb (2019) 39 Cal.App.5th 124, 135.) Sanctions require “extremely high proof” and “truly egregious behaviors.” (San Diegans for Open Government v. City of San Diego (2016) 247 Cal.App.4th 1306, 1318-19.) The burden is on the moving party. (Bach v. McNelis (1989) 207 Cal.App.3d 852.)

Code of Civil Procedure Section 128.5(c) provides that “[e]xpenses pursuant to this section shall not be imposed except on notice contained in a party’s moving or responding papers or, on the court’s own motion, after notice and opportunity to be heard.”

DISCUSSION

Moving Party’s Argument

Plaintiff moves for an order imposing monetary sanctions in the total amount of $48,453.11, consisting of attorney’s fees, costs, and expenses incurred by Plaintiff in connection with Defendant Cook’s litigation conduct. Plaintiff argues that Defendant Cook acted in bad faith by refusing to execute a stipulation (the “Stipulation”) notifying the court of the sale of the Property and Plaintiff and Defendant Cook’s agreement to cooperate with the sale. Plaintiff argues that as a result of Defendant Cook’s refusal to stipulate, the parties incurred unnecessary referee fees, Plaintiff was forced to file a Motion to Confirm the Sale of Property and ex parte Application for an Order Shortening Time on the Motion, and unnecessary hearings on Plaintiff’s Motion to Confirm the Sale of Property and ex parte application occurred. Plaintiff argues that Defendant Cook’s refusal to execute the Stipulation that documented a sale that he agreed upon was an act of bad faith designed to delay the partition proceedings because Defendant Cook had no legitimate basis to refuse to execute the Stipulation. Plaintiff argues that Defendant Cook failed to oppose Plaintiff’s Motion to Confirm Sale and ex parte application, further indicating his bad faith intentions. Next, Plaintiff argues that if the court finds that sanctions are warranted due to Defendant Cook’s failure to stipulate, then the court should consider Defendant Cook’s pattern of conduct over the course of litigation. Plaintiff argues that Defendant Cook has repeatedly engaged in bad faith actions to delay the partition proceedings, including by filing a two-sentence opposition to Plaintiff’s Motion for Interlocutory Judgment, moving to file a cross-complaint before withdrawing it, filing an improper Motion for Reconsideration, and filing an untimely Motion to Replace Referee.

Opposing Party’s Argument

Defendant Cook argues that the instant motion was brought for improper purposes. Defendant Cook argues that his refusal to execute the Stipulation was not in bad faith, as Defendant Cook was unrepresented at the time and was wary of potentially waiving his legal rights. Defendant Cook argues that the evidence shows that he was not intending to delay the partition process because he stated twice in emails to Plaintiff's counsel that he wanted the sale process to proceed. Defendant Cook further argues that he was not legally obligated to sign the Stipulation and argues that the referee was required by statute to file a report of the sale regardless of whether Defendant Cook signed the Stipulation. Defendant Cook argues that his Motion for Reconsideration requested in part that the court set out a mandatory buy out procedure under the Partition of Real Property Act which was warranted by existing law and is thus not sanctionable. Next, Defendant Cook argues that the instant motion is procedurally improper because Plaintiff previously threatened to serve a Motion for Sanctions pursuant to CCP Section 128.7, not 128.5, and Plaintiff filed to comply with the 21-day safe harbor provision. Defendant Cook argues that Plaintiff failed to provide proper notice. Defendant Cook further requests that the court sanction Plaintiff and Plaintiff's counsel for bringing the instant motion for an improper purpose, and argues that Plaintiff has failed to exercise due diligence by waiting until Defendant Cook's Motion for Reconsideration and Motion to Replace Referee were denied before filing the instant motion.

Reply Argument

Plaintiff argues that Defendant Cook's refusal to execute the Stipulation was made in bad faith because Defendant Cook cannot identify what legal rights the Stipulation would have waived, nor has Defendant Cook explained why he ignored correspondence concerning the Stipulation over a period of months and waited until February 2, 2026 to inform Plaintiff that he would not execute the Stipulation. Plaintiff argues that Defendant Cook has acted to delay this action since Plaintiff commenced the action. Next, Plaintiff clarifies that the instant motion is brought based on Defendant Cook's refusal to execute the Stipulation, rather than Defendant Cook's Motion for Reconsideration. Plaintiff argues that Defendant Cook had no statutory right to seek a buyout and argues that Plaintiff's motion is procedurally proper because the motion arises from Defendant Cook's refusal to execute the Stipulation such that the safe harbor provision does not apply. Finally, Plaintiff argues that Defendant Cook is not entitled to sanctions against Plaintiff because Defendant Cook failed to give proper notice of his sanctions request and his request is unsupported by evidence.

Request for Judicial Notice

Plaintiff requests that the court take judicial notice of the following records: (1) the verified Second Amended Complaint filed by Jessica Cook in Jessica Cook v. Devon Osgood Cook, et al.; (2) the January 23, 2025 Judgment of Dismissal in Jessica Cook v. Devon Osgood Cook, et al.; (3) Defendant Cook's opposition to Plaintiff's Motion for Interlocutory Judgment; (4) Defendant Cook's Motion to File a Cross-Complaint; (5) the April 29, 2025 Notice of Ruling filed by Plaintiff; (6) Defendant Cook's Motion for Reconsideration; (7) Defendant Cook's Motion to Replace Referee; (8) the court's June 24, 2025 Minute Order; (9) the Report of Partition Referee Regarding Sale of Property filed by Plaintiff on February 6, 2026; (10) the court's February 18, 2026 Minute Order; and (11) the February 24, 2026 Second Amended Order Granting Motion to Confirm the Sale of Property.

Pursuant to Evidence Code Section 452(d), the court may take judicial notice of court records. Accordingly, Plaintiff's request for judicial notice is GRANTED in its entirety.

Merits of the Motion

A. Procedural Requirements

Defendant Cook argues that Plaintiff's motion is procedurally defective because Plaintiff did not comply with the 21-day safe harbor requirement.

Code of Civil Procedure Section 128.5(f)(1)(B) provides: "If the alleged action or tactic is the making or opposing of a written motion or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading that can be withdrawn or appropriately corrected, a notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected."

Here, the court notes that Plaintiff's motion is primarily brought upon the grounds that Defendant Cook engaged in bad faith actions and frivolous tactics to delay the partition proceedings by refusing to execute a stipulation notifying the court of the sale of the Property. The court finds that a refusal to stipulate does not trigger the safe harbor provision of Section 128.5(f)(1)(B).

Defendant Cook also argues that Plaintiff failed to provide proper statutory notice of the instant motion. However, the court finds that the notice attached to Plaintiff's moving papers is code-compliant, because it specifies the grounds upon which the motion is made, the papers upon which it is to be based, and the hearing date, as required by Code of Civil Procedure Section 1010.

B. Defendant Cook's Refusal to Execute the Stipulation

Plaintiff's counsel declares that beginning on November 12, 2025, Plaintiff's counsel "repeatedly requested [Defendant Cook] execute a stipulation so [Plaintiff and Defendant Cook] could: (a) document their agreement to cooperate with the sale; (b) move forward with the sale outside of the court-supervised partition proceedings; (c) notify the Court of the proposed sale to the first buyer; and (d) obtain the Court's approval of the parties' agreement. Specifically, [Plaintiff's counsel] emailed [Defendant Cook] a request to execute the stipulation on or around November 12, December 5, and December 18, 2025. [Defendant Cook] refused to respond to [Plaintiff's counsel's] requests." (Stephen Decl., ¶ 16.) Plaintiff's counsel next declares that on January 27, 2026, Plaintiff's counsel again requested that Defendant Cook execute a revised stipulation to document the parties' agreement to cooperate with the sale and the new proposed sale. (Stephen Decl., ¶ 17.) Plaintiff's counsel declares that Defendant Cook ignored Plaintiff's counsel's request and waited until February 2, 2026, three days prior to the scheduled closing, to inform Plaintiff's counsel that Defendant Cook would not execute the Stipulation. (Stephen Decl., ¶ 18.)

Plaintiff's counsel declares that as a result of Defendant Cook's "refusal to honor his prior agreement to cooperate with the sale of the Property, the Referee was required to submit a report dated February 4, 2026 (the "February 2026 Report"), to notify the Court of the terms of the Property sale and the Purchase Agreement that were negotiated, agreed upon, and executed by [Plaintiff and Defendant Cook], causing the parties to incur additional and unnecessary referee fees." (Stephen Decl., ¶ 19.)

As pointed out by Defendant Cook, pursuant to Code of Civil Procedure Section 873.710(a), "[u]pon making a sale of property, the referee shall report the sale to the court." Thus, even if Defendant Cook had executed the Stipulation, the referee would have been required to submit a report regarding the Sale of the Property to the court.

Further, Defendant Cook declares that when Plaintiff's counsel requested that Defendant Cook execute the Stipulation, Defendant Cook was representing himself and "was exercising reasonable caution before waiving the Court's oversight or any of [his] legal rights or protections." (Cook Decl., ¶ 6.) Defendant Cook declares that on January 28, 2026, he asked Plaintiff's counsel via email to "confirm what legal rights or procedural protections [Defendant Cook] would give up by signing" the Stipulation, after which Plaintiff's counsel informed Defendant Cook that they could not provide Defendant Cook legal advice. (Cook Decl., ¶¶ 7-8.) Defendant Cook declares that because he did not have legal counsel at the time and "could not understand the full scope of the Stipulation or what rights [he] could possibly be waiving," Defendant Cook declined to execute the Stipulation. (Cook Decl., ¶ 8.)

Next, Defendant Cook declares that he did not attempt to delay the sale of the Property as evidenced by his February 2 and February 11, 2026 emails sent to Plaintiff's counsel in which Defendant Cook requested that Plaintiff proceed with the sale through the court approval process. (Cook Decl., ¶¶ 9-10.)

The court notes that it must find both objective unreasonableness and subjective bad faith in order to impose sanctions pursuant to Section 128.5, a finding which requires "truly egregious behaviors." (Guillemin, supra, 104 Cal.App.4th at 167;

see also San Diegans for Open Government, supra, 247 Cal.App.4th at 1318-19.) In support of his motion, Plaintiff points to Ellis v. Roshei Corp., in which the appellate court affirmed the award of sanctions against an attorney who, on his client's behalf, refused to stipulate as to "the sole issue raised by his demurrer," which "resulted in an unnecessary court hearing." (Ellis v. Roshei Corp. (1983) 143 Cal.App.3d 642, 149.) There, the attorney stated that he refused the stipulation because "his client was suspicious of defendants," and "conceded at oral argument that the trial court could not grant him any additional relief that was not covered by the stipulation." (Ibid.)

However, the court in Ellis noted that "it is not possible for [the court] to set forth with any degree of exactness all possible situations in which sanctions are appropriate under section 128.5. The trial court must view each situation on its merits. Similarly, we do not attempt to require counsel to stipulate to amend a defective pleading and waive any right to pursue the matter by judicial determination for fear of being subject to sanctions pursuant to section 128.5." (Ellis, supra, 143 Cal.App.3d at 649-50.)

The court notes that the instant case is factually distinct from Ellis. Here, Defendant Cook was unrepresented by counsel at the time in which Plaintiff was requesting that he execute the Stipulation, and Defendant Cook declares that he was concerned about waiving his rights. The court also finds that Defendant Cook's correspondence with Plaintiff's counsel indicates his intention to cooperate with the sale of the Property absent the Stipulation. (Cook Decl., Exhs. 4-5.)

The court finds that Plaintiff has not met his burden of showing that Defendant Cook acted in bad faith by declining to execute the Stipulation.

Therefore, the court will not address Plaintiff's subsequent argument regarding Defendant Cook's alleged "pattern of conduct over the course of litigation to determine the appropriate sanctions amount." (Mot. 8:13-14.)

Accordingly, Plaintiff's Motion for Sanctions is DENIED.

The court next turns to Defendant Cook's request that the court impose sanctions upon Plaintiff and his counsel for bringing the instant motion. The court finds that Defendant Cook has not demonstrated that Plaintiff or his counsel brought the instant motion "primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation." (Code of Civil Procedure Section 128.5(g).)

Therefore, Defendant Cook's request for an order imposing sanctions upon Plaintiff and his counsel is DENIED.

Defendant Cook additionally requests an award of reasonable expenses and attorney's fees pursuant to Code of Civil Procedure Section 128.5(f)(1)(C), which provides that "[i]f warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion." (Code of Civil Procedure Section 128.5(f)(1)(C).)

The court finds that Defendant Cook has not sufficiently demonstrated that an award of reasonable expenses and attorney's fees is warranted here. Accordingly, Defendant Cook's request for an award of reasonable expenses and attorney's fees is DENIED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Sanctions is DENIED. Defendant Cook's request for sanctions is DENIED. Defendant Cook's request for an award of reasonable expenses and attorney's fees is DENIED.

Moving party is ordered to give notice of ruling.